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EDS releases first working paper on managed retreat law

13 February 2023

EDS has released its first working paper as part of its Aotearoa New Zealand's Climate Change Adaptation Act: Building a Durable Future project. The project is focussed on developing recommendations for the content of the new Climate Adaptation Act, now taking on more urgency given recent climate-related disasters in Auckland and Tairāwhiti.

Working Paper 1 focuses on why managed retreat is needed, its purpose, underlying principles and funding options. It is co-authored by EDS Policy Director Raewyn Peart, Emeritus Public Policy Professor Jonathan Boston, former EDS Programme Director Dr Sasha Maher and University of Otago Coastal Geomorphologist Dr Teresa Konlechner.

EDS is also releasing a separate report prepared for the project by Professor Boston that examines the design of a public compensation scheme for residential property losses from managed retreat in more detail.

"It is clear that because of increasing climate risks some communities will not be sustainable in the longer term and will need to move. The question is how this might be achieved and

what support might be given to affected communities and by whom,” says EDS Policy Director Raewyn Peart.

“In our working paper we review the likely impacts of climate change on homes, businesses and infrastructure. We then explore potential responses including moving people, buildings and infrastructure out of harm’s way.

“We review international experience as well as past events in Aotearoa New Zealand. We specifically consider impacts on Māori and indigenous ecosystems and species.

“It is already clear that managed retreat will be a difficult but necessary response to climate risk. In many cases it will be the most cost-effective option, and if done well, it can have positive social and environmental outcomes.

“However, managed retreat raises many tricky issues around who should be compensated, how much it will cost and who will pay. These go to the core of our values as a society. Do we leave people to suffer losses and manage as best they can on their own? Or do we collectively provide the resources to assist those who are most affected?

“Many homeowners will be impacted by managed retreat, if forced to abandon their homes, but there will also be significant consequences for businesses and infrastructure providers. Tenants will also need support.

“The impacts on Māori will need specific attention, to ensure the maintenance of connections with important places and taonga and upholding of Treaty settlements. It is also important that Māori social disadvantage is factored into any managed retreat process.

“In recent flooding events the role that natural systems can play in alleviating risk has been highlighted. It is important we take the opportunity to consider how the restoration of natural systems can help both address climate change and biodiversity risks.

“EDS acknowledges funding support for the project from ASB Bank, Beca, IAG New Zealand and Wellington City Council.

“We welcome constructive feedback on our working paper which will be incorporated into our final synthesis report due later this year,” concluded Ms Peart.

A copy of the working paper can be accessed [here](#).

A copy of Professor Boston’s report can be accessed [here](#).

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